SkillLink Nexus Ltd

MANAGED TECH DELIVERY

DATA PROTECTION

Privacy Policy and Data Protection Notice

Explains how SkillLink Nexus Ltd collects, uses and protects personal data.

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Highlighted text in [square brackets] marks details to be completed or confirmed before this document is issued or signed.

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SkillLink Nexus Ltd ("**SkillLink Nexus**", "**we**", "**us**") respects your privacy. This Privacy Policy explains what personal data we collect, why we collect it, how we use, share and protect it, and the rights you have under the Data Protection Act, 2019 of Kenya (the "**Act**") and its regulations.

1. Who we are

1.1 SkillLink Nexus Ltd is a company incorporated in Kenya, registration number PVT-L51DLZB5, with its registered office at P.O. Box 14634-00800, Nairobi, Kenya. We operate the website www.skilllinknexus.com and provide managed technology services, including websites, design, content, data, software, cybersecurity and executive assistant services, and run a skills training and internship programme.

1.2 We are the **data controller** of the personal data described in this Policy, unless we say that we act as a data processor for a client.

1.3 **Data Protection contact:** Data Protection Team, SkillLink Nexus Ltd, privacy@skilllinknexus.com, +254 20 200 9009.

2. Personal data we collect

Who you are	Data we collect
Website visitors	IP address, device and browser type, pages viewed, time on page, referring website, and cookie data.
Clients and enquirers	Name, organisation, job title, email, phone, project requirements, files and materials you send us, quotation and invoice records, payment confirmations, communications with us.
Contractors and applicants	Name, contact details, ID or passport number, KRA PIN, CV, portfolio, work samples, skills, references and vetting records, payment details (M-Pesa number or bank account), assignment and performance records.
Skills Programme participants and interns	Name, contact details, school or institution, learning history, assessments, attendance, programme feedback, and, for any participant under 18, guardian contact details and consent.
Partners and supporters	Name, organisation, role, contact details, correspondence.

2.1 We collect most of this directly from you when you contact us, submit a project brief, apply to join our network, enrol on a programme, sign a contract or use our website. We may also receive limited information from referees, your employer or institution (with your knowledge), and publicly available sources such as professional profiles.

2.2 We do not ask for **sensitive personal data** (such as health, religion, ethnicity or biometric data) unless it is necessary for a specific purpose and we have your explicit consent or another lawful basis. Please do not send us sensitive data unless we ask for it.

3. Why we use your data and our lawful basis

Purpose	Lawful basis under the Act
To respond to enquiries, prepare quotations, and deliver and manage the services you request	Performance of a contract or steps before a contract
To invoice, collect payment and pay contractors, and keep financial and tax records	Contract; legal obligation
To vet, onboard and manage contractors and interns, and match them to projects	Contract; legitimate interests; consent where required
To run the Skills Programme, assess progress and issue certificates	Contract; consent (and guardian consent for minors)
To protect our systems, prevent fraud and misuse, and enforce our agreements	Legitimate interests; legal obligation
To improve our website and services, and understand how they are used	Consent (for non-essential cookies); legitimate interests
To send updates, news and offers about our services	Consent, which you may withdraw at any time
To comply with law and respond to lawful requests from authorities	Legal obligation

3.1 We do not use your personal data for automated decisions that have legal or similarly significant effects on you, and we do not sell your personal data.

4. Who we share your data with

4.1 We share personal data only when needed and only with:

(a) **Contractors and assistants** who work on your project, limited to what they need and bound by written confidentiality and data-protection duties;

(b) **service providers** that help us operate, such as website hosting, cloud storage, email and communication tools, project management software, analytics, payment processors, banks and mobile money providers, accountants and professional advisers, each under a contract that protects your data;

(c) **partners and funders**, for example in aggregate or anonymised form to report on impact, and in identifiable form only with your consent; and

(d) **authorities, courts and regulators**, where the law requires or allows it.

4.2 If our business is sold, merged or restructured, personal data may be transferred to the successor, which must honour this Policy.

5. Transfers outside Kenya

5.1 Some of our service providers store or process data outside Kenya. Where we transfer personal data abroad, we do so only as the Act allows: where the destination provides adequate protection, where appropriate safeguards (such as contractual terms) are in place, or with your consent where required In practice, depending on the provider, data may be stored or processed in Kenya, the United States and the European Union.

6. How long we keep your data

6.1 We keep personal data only as long as needed for the purposes above and to meet legal duties. As a guide, we keep client and financial records for seven (7) years after the end of the relationship, contractor records for seven (7) years after the engagement ends, programme records for three (3) years after completion, enquiry records that do not lead to a contract for two (2) years, and website analytics data for 26 months. When the period ends, we delete or anonymise the data securely.

7. How we protect your data

7.1 We use appropriate technical and organisational measures, including access controls, encryption in transit and where appropriate at rest, multi-factor authentication, confidentiality agreements with staff and contractors, secure device rules, regular backups and incident procedures. No system is completely secure, so we cannot guarantee absolute security.

7.2 If a personal data breach is likely to put your rights and freedoms at risk, we will notify the Data Commissioner and affected people within the time required by the Act.

8. Your rights

8.1 Under the Act you have the right to:

(a) be informed about how we use your data;

(b) access your personal data;

(c) object to the processing of all or part of your data;

(d) correct inaccurate or incomplete data;

(e) have false or misleading data deleted or erased, where the law allows;

(f) receive your data in a structured, commonly used format and have it transferred, where applicable; and

(g) withdraw consent at any time, without affecting the lawfulness of earlier processing.

8.2 To use any of these rights, contact us at privacy@skilllinknexus.com. We may need to verify your identity. We aim to respond within 30 days or the period the Act requires.

8.3 If you are unhappy with how we handle your data, please contact us first. You also have the right to lodge a complaint with the **Office of the Data Protection Commissioner**, Kenya (www.odpc.go.ke).

9. Cookies and similar technologies

9.1 Our website uses cookies. **Essential cookies** keep the site working and secure. **Analytics cookies** help us understand how visitors use the site, and **marketing cookies** (if any) help us measure campaigns. We use non-essential cookies only with your consent, and you can change your choice at any time through our cookie banner or your browser settings At present the Website uses only essential cookies. If we add analytics or marketing tools, we will update this section and ask for your consent first.

10. Children and young people

10.1 Our services for clients are not directed at children. Our Skills Programme may involve participants under 18. For those participants we collect data only with the consent of a parent or guardian and in line with the Act's rules on children's data, and we limit what we collect to what is needed for training.

11. Links to other websites

11.1 Our site may link to websites of partners and third parties. We are not responsible for their privacy practices, and encourage you to read their policies.

12. Changes to this Policy

12.1 We may update this Policy from time to time. We will post the new version on our website with a new date and, if the changes are significant, tell you directly.

13. Contact us

Company	SkillLink Nexus Ltd
Address	P.O. Box 14634-00800, Nairobi, Kenya
Privacy email	privacy@skilllinknexus.com
Website	www.skilllinknexus.com